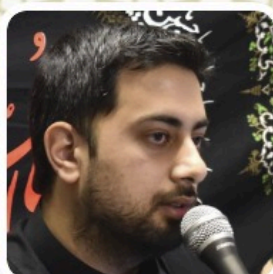


Obedience And Intellection In Religion



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Obedience (Ta'abbud) And Intellection (Ta'aqqul) In Religion

by Sayyid Ali

Between March 20th – April 18th 2020 (lesson 118 – 131) in the advanced lessons on legal theory, Shaykh Haider Hobollah addressed the subject of obedience vs. intellection in religion. These lessons were some of the final few classes delivered during the topic of Maqasid al-Shari'ah and the complete detail of this subject can be found in volume two of al-Ijtihad al-Maqasidi wa al-Manati, book, pgs. 523 – 617.

The topic of obedience (ta'abbud) and intellection (ta'aqqul) in religion can be addressed from two perspectives, general philosophy of religion perspective and a specific Islamic perspective. In this post we will be discussing the topic from the first perspective due to its significance in contemporary times. These two concepts have become prominent discussions in the modern era, but they are by no means a new discussion, rather this discussion pre-dates Islam.

If one were to study Jewish history, we find that the Romans were ruling before and after the life of Jesus (a). Even though the Romans had control over the Western Middle East, the culture was still not Roman, and only the governance style and order of society were Roman. The way of thinking was in fact influenced by Greek, even though the Greeks had no power and authority over these lands. In this context, Judaism was made a mockery of, particularly by those who were influenced by Greek thought. The reason for this mockery was that the Jewish community did not have a rational culture or a rational explanation for life, existence and knowledge. This sentiment is documented in places like Alexandria.

Around a century before Jesus (a), it was a very difficult period for the Jews. Around 30 years before Jesus (a), Philo of Alexandria was born, who was Jewish by religion but his way of thinking was like that of the Greeks. Some scholars of history consider him to be the founder of the “philosophy of religion”. Philo tried reconciling Jewish teachings with Greek philosophy by employing things like allegory on text and had a significant impact on Christianity as well in the first century.

Thereafter, the Christians went through the same issue. Initially they had to deal with Roman oppression, but once Christianity began to expand, they also began to live a better life, however they were attacked by Greek thought during these centuries and as well as by innovators. All these attacks and discussions were related to the topic of obedience and intellection in religious matters. This led to the formation of numerous sects within Christianity – some responded in a similar way to Philo, such as St. Justin, Origen of Alexandria and Tertullian. The efforts of these scholars resulted in four trends on the role of the intellect and faith in religion and these trends exist until today:

- 1) The intellect is binding, but religious matters are of two types: those which the intellect can perceive, like existence of God, and those which are a-rational or supra-rational, such as crucifixion, trinity and anthropomorphism of God. This is the position of Thomas Aquinas and is popular amongst Catholics.
- 2) The intellect can understand all religious matters, interpret it, and perceive it. This camp believes we can give a reasonable rational explanation for crucifixion, trinity and other articles of belief.
- 3) The intellect can set criteria and methodology. In other words, the intellect is the ultimate judge, whatever it can perceive is accepted and whatever the intellect does not understand is to be rejected. This is popular amongst Constantine's followers and Protestant thought.
- 4) The intellect is totally irrelevant as it cannot judge nor interpret, nor does it at times perceive and at time does not. This view rose again around 19th century in fideism and these people are completely submissive.

Case Study: Kierkegaard And The Struggle Of Faith In The Modern Era

Humans have dealt with religious propositions throughout their history in various ways, often subject to human needs and their own intellectual capacities. For example, for many centuries Peripatetic thought dominated Islamic communities and schools, or the theology of Thomas Aquinas dominated many Christian Catholic societies and continues to do so until today. However, at other times, mystical and Sufi thought dominates certain Islamic communities and continues to do so until today, or ancient Socratic thought dominated certain Christian communities, particularly in the works of Augustine (d. 430) and Meister Eckhart (d. 1328).

However, after the Enlightenment and the age of modernity, humans began to address religious propositions in context of their own circumstances, which were unprecedented. In this era, the Danish philosopher Søren Kierkegaard (1813 – 1855) emerged and contributed something very novel and different to the discussion of intellect versus faith.

Kierkegaard believed faith had nothing to do with history or external factors, as external factors do not give you any certainty whatsoever. According to him, faith is a personal matter which gives you certainty,

and since it gives you certainty it cannot even be built upon history or philosophy. External truths are either philosophical or historical, therefore Kierkegaard does not care about what scholars of those two fields uncover for us and tell us. What is important is how you live your life right now and what you have faith in. He says people spend their whole lives learning about complicated matters, and they go into so much depth, but they completely become heedless of their own selves, which is in fact the solution. This is very contrary to Hegel who believed history played a great role in building faith.

Kierkegaard believed faith is not knowledge of informative propositions (i.e. God exists, etc.). Faith is a relationship. The former is similar to our knowledge that a mother loves her child, but the latter is similar to a mother's own knowledge that she loves her child. He presents three general arguments for his version of fideism:

1) The Approximation Argument: Kierkegaard believed religious studies are based on history, but since history does not give you certainty, rather only speculation, it has no real role in building faith. He does not value history due to its inherent poverty in giving certainty. So, one must differentiate between faith and history and we must build our faith on something else.

2) The Postponement Argument: Kierkegaard says it is not just that history does not give us any reliable information, but furthermore, if one builds their faith on history, it is prone to crumble the day one critiques history. Faith needs to be built on something which cannot be removed. History changes based on new research and findings. If someone builds their faith on information that is speculative, then that faith will only remain as long as the historical findings remain fixed. The moment those historical findings and interpretation change, one's faith will also change.

Those who respond to Kierkegaard by saying, we will first spend our lives building and strengthening our arguments for historical truths, and then build our faith on top of that, he responds by saying one does not have that much time in their lives. You cannot postpone faith for an ambition that may or not may not even give you the conclusions that you are seeking. Faith is of utmost importance for one's well-being and eternal bliss, and it cannot be postponed for any other endeavour.

3) The Passion Argument: In the previous two arguments he differentiates between the historical-intellect and faith, but in this argument, he says there is complete separation and conflict between them. This is his way of critiquing intellection in religion. He also had a specific definition of faith which is that religiosity is a probable risk that one takes and it cannot accompany faith at all. Certainty according to Kierkegaard is inherently in conflict with faith, and this is a strange position he opted for because it is not clear why that is the case.

To illustrate what he means, consider the following example. In one scenario, if a person tells you to throw yourself off a cliff and you obey this person's statement, then this is an instance of faith. However, in a second scenario, if this person knows there is so much cotton on the ground that if he jumps off the cliff, he will not die, then this is not an instance of faith in the person's command, rather it is his knowledge

of the consequence that motivates him to listen to the command. However, what is better and superior? The first scenario is much more superior as it has nothing to do with knowledge of external matters, and it is a complete case of faith and taking a risk.

In other words, Kierkegaard says religion is beyond ethics; it is not ethical itself. In his book *Fear and Trembling*, he speaks about Abraham's sacrifice and says he was a true believer and faithful. We can even apply this to the story of Imam Ali (a) sleeping on the bed of the Prophet (p) on the night of the hijrah. The test of faith happens if the Imam (a) did not know what will happen to him, but if he already knew he would not die that night, then there is nothing special in what he did.

Observations On Kierkegaard

Kierkegaard has created a problem for himself, because as per his view, belief in superstitious ideas or idol worshipping is not an issue if one's faith is not dependent on it¹. However, it is not possible for Kierkegaard to deny that faith and how you live your life are connected, as faith has a very evident influence in how one lives their life. In this case, if we are unable to justify our faith, albeit just ethically, then that means we are leaving human life at the disposal of error and moral vices.

We would also question Kierkegaard on his definition of faith. Why does faith have to be unwavering, and that it is not something that can or should be shaken? Why can faith itself not be an experience of one's interaction with reality that they perceive with the intellect, and that at times it can be weakened or at times it can be strengthened? On what basis or through what justification is Kierkegaard limiting his definition to faith to something that cannot be built on something that could possibly shake it?

Another issue with Kierkegaard's position is that he does not realize absence of intellection results in superstition itself. When he pushes faithism and religious experience as superior, he does not offer any way to determine the authenticity, validity and reality of our religious experiences. This faith is particularized to a single individual, and so it is even possible to universalize it and propagate it without rationalizing it? What does a person who does not go through a religious experience do in life? Kierkegaard expects humans to go and experience their selves, but how can he differentiate between a real experience and a delusion?

The reason why we began our discussion outside of Islam is because modernity was a project that started in the West and Western scholars and philosophers have been engaging with it for a few centuries. These discussions and paradigm shifts impacted the Muslim world as well, and we have witnessed similar trends and movements emerging as well. These trends have to be studied carefully and their views have to be identified. Where can we find such sort of fideism in the Muslim world?

For example, can we call proponents of Maktab-e Tafkik as fideists? Though they are nothing like Kierkegaard or Wittgenstein, but they still reject philosophy and intellectualization. Or are they rational, but not proponents of philosophical rationality, as some Tafkikis themselves say. What about the

Akhbaris? Are they fideists 'Allamah Majlisi says the intellect can be used to prove who the Imam (a) is, but thereafter you can bid the intellect farewell. How about the Asha'irah amongst the Ahl al-Sunnah, can they be considered fideists?

Case Study: Mostafa Malekian And Obedience As The Crux Of Religion

Mostafa Malekian believes religion is nothing but obedience and conflicts with intellection. Malekian believes religion is one entity and it is separate from modernity, the crux of the latter is intellection, and these two are different entities. The former is based on mere obedience whereas the latter is based on independent thinking. One will find three important themes in his works and ideas:

Modernity: he believes modernity has two elements, one of which you can stay away from and one aspect of it you cannot avoid. One can stay away from different manifestations of modernity in different geographical locations – for example, the way modernity manifests in Germany is different to the UK. However, there is an aspect of modernity that no one can avoid.

Religion: Malekian says religion has 3 meanings: 1) The textual literature; 2) Commentaries and interpretations by scholars on that textual literature; 3) What followers of any given religion do.

He also says humans inherit religion, and do not choose religion, except on rare occasions. What humans do instead, is justify their religion. He says it is impossible to choose a religion because there are many aspects of religion that one cannot even prove or logically justify.

Furthermore, he says the phrase 'crux of religion' (jawhar-e din) itself has three meanings:

- 1) The kernel or objective of religiosity: what is the ultimate purpose of being religious? What is desired in essence?
- 2) The common denominator between all religions throughout history and geography. When we look at all these religions, what is the one or multiple things that they all share? That is the crux of religion.
- 3) The general direction and general message in any specific religion without any concern with its context – it does not matter when and where it was revealed.

Malekian says he intends the first meaning, not the second or the third meaning. He says the first meaning is spirituality and that is comprised of tranquility, bliss and hope.

The Three Readings Of Religion

Malekian says religion has 3 readings, and all three of them face an epistemic crisis:

1) Predecessor–Jurisprudential (Salafiyyah–Fihiyyah), 2) Imitative–Traditional (Taqlidiyyah–Turathiyyah), 3) Modern (Tajdidiyyah)

1. Predecessor–Jurisprudential

The first reading which he describes as the Salafi reading, is not a reference to the Salafi school of thought. Malekian simply means the jurisprudential approach to religion. According to this reading, religion is understood as follows:

- 1) The probative force of the intellect only when it comes to understanding the words of the Quran and Sunnah. Intellect simply means to follow the text and the intellect is at its service, since religion is text–centric.
- 2) Ta’wil of the text is allowed – even if it is only minimal – according to your preconceived theological ideas.
- 3) The apparent form of religion in practice and rituals has priority over spirituality.
- 4) Religion and the Shari’ah are the same thing.
- 5) The Shari’ah has to be implemented under all circumstances, even if it means one has to resort to force and aggression.
- 6) The Shari’ah is in complete contradiction with secularism – the two cannot be reconciled.
- 7) There is no such thing as religious pluralism. There is only one religion that is on the truth, and everything else is completely false. In fact, this approach does not even grant justification to any other reading of religion, and sees matters as black and white.
- 8) The logic of this approach is to blame others for their problems, for example, the West. They do not take responsibility for any of their flaws.
- 9) They have nothing practical to offer to society. All they have to offer is slogans and cliches, telling people they are going to hellfire because no one is following the laws of God, or that people are all delusional etc. If you ask them, do you have a practical program to offer on how we can change our societies, they have nothing to say.

2. Imitative–Traditional

This reading according to Malekian is a reading of religion through a Persian lens, and not relevant to the entire Muslim world. Hence why you will see Malekian himself emphasizes a lot on mysticism in his explanation of this reading, even though this does not exist in all Muslim societies. In fact, this seems to have a pre–dominant presence only in Persian. When Malekian uses the word traditional, he is essentially describing the mystical aspects of it. He says this reading is comprised of the following

points:

- 1) The probative force of the intellect and independent authority of the intellect, and not just limited to understanding the texts. This intellect is intuitive (shuhudi), not argumentative (burhani). However, its strength is not to the level of the probative force of the Quran and Sunnah.
- 2) They are accustomed to doing Ta'wil of the text, as they generally incline towards wanting to understand meanings beyond the literal words.
- 3) This reading contradicts obedience as they are trying to understand, and are essentially focused on "post-obedience". For example, they will focus on why there is prostration and why there is ruku', what are the secrets of these acts and movements, and so on.
- 4) It considers the pure obedient understanding of religion to be very simplistic and believe one must go beyond the text.
- 5) Strong inner faith is what constitutes bliss and success. They believe following laws is a necessary condition, but laws are just a means at the end of the day.
- 6) Ethics is what is of importance and has priority, not law.
- 7) They are indifferent towards politics and do not generally get caught up with it. They do not believe politics should be separated from religion, but if it so happens to be separated it is not the end of the world. They can live in any society because of this.
- 8) They confess to religious pluralism to an extent and as well as the existence of multiple justified readings of religion. You will also find proponents of this reading relying a lot on mystics such as Ibn 'Arabi and Jalal al-Din al-Rumi, as they believe these figures offered spiritual solutions for humans and were not fixated on the fulfillment of worldly needs.

3. Modern

The modern reading has the following qualities:

- 1) The intellect is independent and can build arguments. It is the ultimate criterion to even judge religious texts.
- 2) The objectives of the Shari'ah and philosophy of religion are important discussions. They say the intellect can get jurisprudence closer to what the original objectives were.
- 3) Intellect has priority over the texts.
- 4) The spirit of the religion and its objectives are important to consider.

- 5) They believe laws do not remain the same. There is change in religious laws, over time and place.
- 6) One is not supposed to do taqlid of predecessors.
- 7) Religion and politics are separate. You can reconcile between them, but you can also separate between them.
- 8) They believe in religious pluralism and political pluralism. In fact, according to them acknowledging such pluralism is a much more pious and just position to take.
- 9) There is no relationship between justice and good welfare with religious governance. Meaning you can have former but not latter, or latter and not the former.

There are two main differences according to Malekian between these three readings:

- 1) The Jurisprudential reading of religion is concerned with the apparent meanings of the text and it does not care about the spirit of the text. For example, how someone's bear looks like is of utmost importance to proponents of this reading. The Modern approach cares about the objectives, purpose and spirit of the law.
- 2) The Jurisprudential reading is a law-based reading and considers the pillar of religion. The Modern approach does not give jurisprudence this much space in religion, in fact, they consider it the least important aspect of religion. Malekian says I am a proponent of the third reading, but I do not agree with the mainstream Modern position, rather I believe in a spiritual modernity.

The Spiritual Approach To Religion

The third element Malekian believed in was spirituality. When we look at Malekian's works we can get a very decent understanding of what he means by spirituality. According to him, the historical experience of humanity shows they are all trying to diminish troubles, problems, and hardships. Auguste Comte says God comes between hope and possibilities – our hopes are a lot, but our possibilities are very little. God is present in between these two states to give us tranquillity. Malekian says religion has come to reduce and give us hope during challenges, because our hopes are a lot, but our possibilities are very little.

However, despite this being the purpose of religion, religion itself caused a lot of problems. These problems led to the question: can we go to an approach that gives the same treatment as religion, but not the pains of religion? This is the beginning of a spirituality that is beyond any religion. Malekian believes the spirituality in Buddhism seems to do exactly that.

It is also important to note that Malekian believes spirituality is not a sect, rather it is an approach or a direction. The question though is, what exactly do proponents of spirituality want to see happen in the modern world? They say there are many issues in the modern world, some of which can be solved by

chemistry, some by physics, some by biology and so on. But there are some problems that can only be resolved with religion, and specifically the spirituality of religion. In other words, the spiritual approach merely uses religion as a means to solve mankind's spiritual issues or it gives humans enough strength to deal with these issues, as there is no other way to address them.

For example, if someone important passes away in your family, it causes pain to you. However, this pain cannot be cured or addressed by a doctor or a biologist, nor an anthropologist. This can only be cured by remembering Allah (swt), and by acknowledging the reward He (swt) will give to those who are patient and other similar religious notions that revolve around such circumstances.

The Shortcomings Of Creedal Beliefs

The spiritual approach believes it is the only solution to mankind's spiritual problems, but at the same time it also believes creed and theological beliefs play no role in solving those issues. The spiritual movement is not only not concerned with the truth and validity of creedal matters, but even go as far as to say you cannot prove most of those matters. They offer a few reasons for their position:

1) Christianity resolves the spiritual problems of Christians; Islam resolves the spiritual problems of Muslims and so on. This means every religion can resolve spiritual issues, but if it was the beliefs that resolved these matters than that would mean Christianity or Judaism would not have been able to resolve spiritual issues, since their beliefs are false.

2) Natural and experimental sciences have no role whatsoever to play in resolving spiritual issues, because religion claims to cover all those aspects as well. For example, religion claims to tell us about the secrets of the world, how it works, and how we are to confront it. This means, even the sciences cannot resolve these spiritual issues.

3) How society is structured and ordered also has no bearing in resolving humanity's spiritual crisis, because you can find religion active in any system; be it agricultural, industrial, feudal, dictatorship, democracy etc. For example, if we give someone an aspirin and say do not drink water, but later tell them to take an aspirin and drink water, and then realize that the cure worked even in the first scenario, we will come to the conclusion that water had no significant role to play in one's cure. We see what was common in both scenarios and see that it is just the aspirin that has relevance.

This is how religion is perceived as well by proponents of the spiritual movement, as they realize religion solves our spiritual crisis no matter what the natural sciences happen to say about the world, no matter what system is being implemented, and regardless of what creedal belief one holds.

Conflict Of Religion And Modernity

Malekian and other proponents of spirituality say religion does not accept modernity since religion believes in obedience, while modernity believes in intellection. Obedience says to obey and listen to

someone without any evidence – that is the crux of religion, which is in total contradiction with modernity.

However, if we were to remove obedience from religion, all that is left is spirituality, and that enables a person to live in modernity with the spirituality of religion.

The biggest question we can pose to individuals like Malekian is, then what is the point of revelation? Does revelation even have any logical probativity? Malekian says it does not because:

- a) some people do not believe in revelation, and
- b) there are contradictions in revelation itself. Furthermore, these sources of revelation do not offer any coherent way to even resolve these contradictions.

Proponents of this spiritual movement also believe no human is sacred. According to modernity, all humans are equal and anyone who brings evidence for any claim has to be accepted and give credit to. If someone cannot bring evidence, they are to be rejected and called out. There is no sacred person whose words are to be accepted without proof.

What does Malekian say about taqlid and other scenarios in one's life where humans do tend to rely on the opinions of another without knowing the evidence for their claim? The whole concept of taqlid is that one accepts the statement of an expert without evidence. Malekian says taqlid is against intellectuality as well, however there are three exceptional cases:

- i) Historical induction: When we look at human history, we see humans benefit from doing taqlid of some people, such as doctors. If we were to tell them to not listen to doctors without evidence and proof, this will result in chaos.
- ii) Personal experience: If you personally experience the benefits of learning from someone without ever knowing their proof or evidence, or even knowing whether their views are correct or not, your personal experience alone is enough to justify your behaviour. For example, if someone learns music from a music teacher, but has no knowledge on the proof of what they are teaching, however, you see the benefits of what they are teaching, that is enough.
- iii) Referring to experts: When someone refers to an expert in a field, this form of taqlid is fine.

In these three cases, Malekian says taqlid is fine, however, other than this it is to be rejected. In particular, Malekian intends to diminish the sacredness attached to religious figures and the culture of blindly following them in different religions.

Another important claim Malekian makes is that given humans have lost trust in history in the modern era, it cannot be made criteria for humans to live their lives by. This is against the general understanding of history amongst many religions, because if history is omitted then there will be nothing left of religion except some general philosophical or theological principles. However, if one wants to prove the specific

prophethood of Muhammad (p) and his (p) qualities and lifestyle, there is no choice but to refer to history. If you want to prove whether Imam 'Ali (a) was meant to be the first caliph or Abu Bakr, you have no choice but to refer to history. In fact, even Quranic sciences and Biblical studies are not detached from historical studies. Even jurisprudence and many discussions in ethics are all related with historical studies.

If this is an issue that modernity puts humanity in, then what is the solution? Malekian says the spiritual approach gives us the solution because it believes history is not an integral part of religion. History is merely informative propositions, whereas religion is a spiritual state and an engagement with the Higher Supreme Being, to solve and cure human pains. Spirituality does not care for whether Musa (p) or Muhammad (p) were prophets or not, or whether 'Ali (a) was an Imam or not, or whether Abu Bakr was the first caliph or not, because none of these things matter and none of them actually resolve human pain and suffering – in fact, they may even increase them. As such, according to Malekian, history is not as important and thus spirituality itself does not conflict with modernity.

The Positive Qualities Of Spirituality

All of what has been mentioned earlier are things spirituality was negating. It negates the comprehensiveness of religion, it diminishes the importance of jurisprudence, and it has no concern with historical propositions. However, what are some attributive qualities of spirituality? Proponents believe:

1. Spirituality is a particular experience, and not universal. They do not claim they will solve issues for the entire world. This is similar to the view of religious mystics who are also limited in number within religions, and nor do they claim their personal spiritual experience solves issues for humanity.
2. Spirituality is a gradational experience. Not every person who goes through a spiritual experience has the same degree of experience. This is because humans are at different levels and capacities.
3. Spirituality is a need for this world, not the hereafter. The spiritual approach cares about worldly consequences. This does not mean a proponent of spirituality should ignore what will happen after death or deny it, but that one should solve problems they suffer from in this world, while they are alive.
4. Spirituality reduces human pains. Malekian divides pain into those that can be removed such as by vaccines, pains that cannot be removed such as those that humans have to face in nature like earthquakes, and pains that are spiritual in nature. It is the third type of pain that spirituality can resolve.

It is also important to note that Malekian does not believe a spiritual human is the opposite of an atheist, rather they are opposite to vain people who have nothing to do in life. A spiritual person lives a life that is not hypocritical.

Critiques And Observations On The Spiritual Approach

1. We see that Malekian and other spiritualists develop their ideology based on certain principles, which is normal. However, what if a group of religious people want to build their spirituality through their own religious texts – is that possible or not?

I believe almost all will agree that there many religious texts that are against pseudo-spirituality. The Quran and the Islamic texts speak clearly and explicitly about tawhid and other creedal matters, which are all informative propositions. These are not secrets or symbolic words. In fact, spiritualists do not offer a coherent and consistent spiritual interpretation of these texts, and I believe this is because they already know they will be unable to do so for a vast majority of the religious texts.

Furthermore, what is the purpose of sending Prophets (p) according to proponents of spirituality? What did the Prophet (p) bring for humans, and what was he trying to do? When we look at the teachings of the Prophet (p) we find that he (p) is already offering a spiritual dimension, so what is it that the spiritualists are offering that is so different and unique? In fact, Muslims and other religious groups are saying believing in tawhid the way we define it is what will help you with spirituality.

Please note this is not a critique of Malekian's view because he does not consider the texts as a probative source to begin with. However, what we are suggesting is whether it is not possible for a religious person who believes in the texts to say that they can offer a spiritual reading of religion? We say yes but based on their own creed.

2. Malekian and other proponents of spirituality say there is no evidence for the proof of God, or that most metaphysical religious propositions cannot be proven logically. This is a core position of many spiritualists today. We say this all depends on your presumptions about what constitutes proof. For example, by that record, a Muṭazali cannot prove anything to an Ashʿari and vice-versa either, because both have different epistemic foundations and assumptions.

This is also not necessarily a critique on Malekian, but rather it is also a critique on critics of Malekian who suggest his belief and view results in many problematic conclusions. The conclusions are only problematic because each group has their own epistemic foundations.

3. Malekian divided modernity into dimensions: things that can be avoided and things that cannot be avoided. How does Malekian know which ones cannot be avoided and can be avoided? He does not even bring a single explanation for how he arrived at this conclusion. For example, how does Malekian know one cannot escape intellection and abide by mere obedience in the modern era?

What is ironic is that people who brought on modernity were mostly people who believed in the metaphysical and were believers in God.

4. How does Malekian know the crux of religion is to remove pains? It is clear that Malakeian was

determining this by looking at what things religion offers but yet there is an alternative for it elsewhere, and what things religion offers and it does not have an alternative for it. We believe, this approach is based on the theory that looks at religion from human expectations, whereas we do not believe this is the correct approach.

A better approach to take is by looking at religion and determining where it has a positive result. Anywhere it results in a positive, it affirms it as an objective and goal. Wherever religion does not result in anything positive, then it shows it was never its objective. Whether it has an alternative or not is not the criterion, since needs are not the standard, results are.

Furthermore, even if there is an alternative to religion, why is Malekian disposing of religion and forcing people to take the alternative? Why does Malekian not say humans have a choice, they can go with the solution religion offers or the one its alternative offers.

5. Malekian says we need the spiritual aspect of religion because that is the only solution for human suffering and pain, but the question is, is it really the case that human spiritual suffering cannot be cured by anything else? There are many people today who say they do not need spirituality to cure their pain and suffering, and in fact, the progress modern science, medicine and psychology have made are also capable of resolving many of our pains. What is Malekian's response to them?

6. Malekian believes the greatest point of contention between religion and modernity is obedience and intellectuality.

i) Malekian assumes modernity is in opposition with obedience and that religion results in obedience, bias and prejudice. However, does obedience really result in preconceived beliefs and bias? On the contrary, is it really the case that modernity has no obedience and bias?

Malekian offers no evidence that modernists cannot resort to bias and prejudice, and those religious people cannot be unbiased. Bias and prejudice are psychological factors, and they have nothing to do with being a modernist or religious. You may find an obedient person, but they are very lenient and unbiased.

ii) Malekian says obedience is the opposite of intellectuality and religion is therefore against intellectuality. This is also not accurate, because:

a) If he means it is impossible for religion to relate to intellectuality, then historically speaking he is wrong. Many religious people throughout the course of history were not basing their religious worldviews or practical life merely on obedience, and instead were basing it on intellectuality and rationality.

b) If he means that the essence of religion qua religion is in contradiction with rationality, i.e. it is not possible to conceptualize religion alongside intellectuality, then even this is wrong. What is the evidence for this? Is it not possible to imagine a person engaging in pure theoretical and intellectual discourse and

arrive at religious conclusions that affirm the notion of obedience? This is not possible. In fact, Malekian himself says there are three exceptional cases where even a modernist can have obedience and that was in taqlid.

iii) Malekian believes in something called rational and reasonable taqlid. He says this obedience has a rational justification; thus, it is correct. We say, is it not possible to understand religious obedience in the same way? Malekian says obedience in religion is not reasonable, but he does not expand on this point anywhere to explain why obedience in religion is not reasonable, but it is reasonable in those three cases of taqlid. The entire argument religious people make for taqlid is that it is a reasonable thing to do.

iv) Malekian says people do not choose their religion, rather they justify it. The question is, did most modernists choose their religion or also merely justify it? It seems that most people who ascribe to modernity also merely justify it, and just as there are very few religious people who build their entire belief system on proof and evidence, there are also very few proponents of modernity who build their belief system on evidence. Most people ascribe to modernity due to media, television, social media, and the narratives that are being constructed by those in power and authority.

v) Some of the qualities Malekian mentions as specific qualities of spiritual people are not really restricted to them. For example, saying that spiritual people practice what they know, is not something only spiritualists are saying, rather many religious people and religious texts have affirmed this notion for centuries².

Definitions Of Obedience

Despite Malekian using the phrase obedience and characterizing religion with it, we must understand what it even means. Some may say obedience simply means to worship and show servitude, but when we look at the expansive jurisprudential literature of the Muslims, we find at least seven meanings of the word obedience:

1) Obedience is when we do not know the reason for why we are being asked to do something. When we know the motive for why we were commanded to do something, then we know the objective is relevant regardless of how it occurs.

For example, if we are commanded to wash our impure clothes, we know the objective here is to ensure the clothes are pure. In this scenario, whether we wash the clothes consciously or not, the clothes will be pure and this act is considered tawassuli – the act is merely a means to the known objective. If it was not a tawassuli act, then we would not have known the objective.

This is a famous division amongst classical scholars of jurisprudence and legal theory³ and this is the division that concerns us the most in our discussions.

2) Obedience is something that requires an intention as opposed to not requiring an intention of seeking

proximity to God.

3) Obedience is a responsibility that cannot be fulfilled except through a halal instance, and tawassuli is that which can even be fulfilled through a haram instance. For example, washing your impure clothes with usurped water or on usurped land are all enough to make your clothes pure.

4) Obedience is a responsibility which cannot be done without an intention, but tawassuli can occur even when someone is forced to do an act, or when one has no intention.

5) Obedience is a responsibility which does not diminish by others performing it, whereas anyone can perform a tawassuli duty and the responsibility will drop for you as well. For example, someone can wash your clothes for you, but not pray for you.

Some scholars of Usul separated definition 3, 4 and 5⁴, while others combined them into one⁵.

6) Obedience is a speculative piece of evidence that is binding because of the Legislator, as opposed to evidence which is intuitive and certain.

7) Obedience is a matter whose source and evidence is not clearly known, as opposed to a matter whose source is known. This division is used in context of the discussions on consensus (ijma⁶).

This 7th meaning is very similar to the first meaning, where we do not know the “reason” for why something must be followed and obeyed.

Two Approaches To Obedience

We can say there are two dimensions to intellection and obedience in the Shari⁷ah:

1) Acceptance & Rejection, 2) Understanding & Explanation

What is meant by the first dimension is that someone will accept religious law even if they do not understand it; they will not reject it just because they do not understand it. If a person acts like that, they are considered obedient. However, an intellectual person is one who sees whether their rational mind affirms a religious matter and finds a justification for it. If the intellect is unable to reconcile it with their intellect, they will reject it and not act on it.

In the second dimension, one tries to explain religion through whatever words are written and used in the religious texts themselves. This is an obedient approach and most jurists, especially Shi⁸i jurists are like this. But some say we must understand the texts through the human intellect, we cannot suffice with just the words in a religious text, rather we must look at them through a critical lens. This is where Maqasid based ijti⁹had also comes into play. This group of scholars says you cannot run society without using this approach and we have discussed this in great length in our discussion on the Comprehensiveness of the Shari¹⁰ah.

Is Intellection Reasonable In Non-Ritual Acts And Acts Of Worship?

Amongst the Shi'a, we find that the role of intellection in acts of ritual worship is very similar to how it is used in non-ritual acts. This is because in either case, both are considered acts of obedience. In recent decades, many scholars have begun to treat non-ritual acts outside the role of mere obedience and believe the intellect can play a significant role in understanding them. This position needs some clarification:

a) If the claim that the intellect can play a role in understanding non-ritualistic acts, is dependent on induction, that means it is an understanding that develops after investigation. A person goes and does ijtihad, and through their experience with the texts, they realize and determine what those non-ritualistic acts mean or what their objectives are.

If this is what a jurist experiences, we cannot critique them on it as that is their own personal experience. However, we want to determine whether we can arrive at these conclusions before such an inductive experience; can this claim be proven otherwise?

b) Perhaps they can argue by saying non-ritual acts are matters humans already have experience with, even before any specific religion came to them. Anything humans have previous experience with, then it is expected for them to know the objectives for it as well, more so than objectives of ritualistic acts of worship since they were all prescribed to them after religion came to them. This means a jurist can enter a discussion concerning non-ritual acts, like marriage, transactions, divorce etc. with this assumption.

c) When we approach jurisprudence, we approach it with an obedience-mindset, whereas what is the default approach we should be taking? Why is the default approach to jurisprudence, or at the very least to the non-ritual aspects of it, an obedience-mindset?

d) Some say non-ritual acts are capable of being rationalized, but why can a jurist not say that acts of ritual worship can also be rationalized and we can intellectualize them? In fact, we have hundreds of narrations that tell us the reason and objectives of why different ritual acts were prescribed, what were their reasons and so on.

We believe, neither is there a primacy of obedience when it comes to ritual acts of worship, or is there a primacy of intellection when it comes to non-ritual acts. We do agree that the extent of how much one can intellectualize on worship is far less than non-ritual acts, however, the entire discussion has to do with the nature of the act itself, whether it is possible to intellectualize it, and whether our human experiences have anything to do with it.

Is Obedience Detested From An Internalist Religious Perspective?

Obedience from within a religious perspective does not have any negativity attached to it, it is not seen as detested (qabih). Obedience, submission, reliance on God etc. are all concepts that are prominent and seen as beautiful and good in the Abrahamic religions. The strength of submission and Islam is in fact demonstrated in situations where one does not understand something, or they do not seem to find something reasonable. This is how the entire notion of servitude is developed in a person.

The story of Abraham's sacrifice is one of the greatest examples of this in religious literature. The son of Abraham could have escaped or informed his father of the unreasonability of his decision to slaughter him, but his strong faith and submission to Allah (swt) only caused him to remain patient and accept his fate.

We are not convinced by the arguments of those scholars who want to change the paradigm of Islamic discourse from the relationship of slave and master, to a paradigm of society and expediency⁶. The idea of slave and master is too clear and obvious in the religious texts to be ignored. However, we do agree that this paradigm needs to expand to address both individual needs and societal needs, not just individual needs which is what much of the legal heritage is based on.

The Impact Of Maqasid Based Ijtihad In Intellection In Religion

Based on our discussions so far, I believe it is clear that maqasid based ijtiḥād has a very strong influence in doing intellection in religion:

1. Since maqasid based ijtiḥād allows us to produce a systematic Fiqh, that itself contributes to contemplating and intellectualizing our jurisprudential tradition and making it reasonable.
2. Maqasid based ijtiḥād opens the room for intellection and that ultimately can assist us in preferring one argument over another, in cases of conflict and contradiction.
3. Maqasid based ijtiḥād strengthens a jurist's ability to do ijtiḥād in four ways:
 - a) He is taking his extensive efforts to a different level, as he now has to contemplate and think about narrations that mention causes and objectives for different matters.
 - b) It results in far greater attention to the religious textual heritage in general.
 - c) A jurist will have to rely on induction and this encourages greater research and affinity with the religious textual heritage.
 - d) A jurist is able to connect maqasid oriented texts with the Shari'ah. This does not mean all of the

Shari'ah becomes rationalized, but it definitely increases its percentage.

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- [1.](#) In the published book, Shaykh Haider offers five critiques, while in his class he seems to have sufficed with one or two critiques. For those wanting to read more extensive criticisms on Kierkegaard, they can refer to pgs. 535–542.
 - [2.](#) There are many more critiques in the book, between pages 587–606. I have only written a very brief summary of some of the critiques.
 - [3.](#) Usul al-Fiqh, by Shaykh Muzaffar, vol. 1, pg. 116.
 - [4.](#) Buhuth fi 'Ilm al-Usul, Shahid Sadr, vol. 2, pg. 63.
 - [5.](#) Dirasat fi 'Ilm al-Usul, vol. 1, pg. 181–182.
 - [6.](#) See for example, Nazariyyeh I'tibar-e Qanuni dar Guzar az Shaksiyat-girayi, by 'Ali Ilahi Khorasani.

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